

		they are read in context with the other facts alleged as to defendant's conduct in order to "adequately plead the evil motive requisite to recover[] ... punitive damages".) Plaintiffs allege Garcia consumed alcohol to the point of intoxication. Garcia knew (1) he was intoxicated, (2) he had to operate a motor vehicle, which he allegedly did not have a valid license to operate, and (3) he was unfit to operate the motor vehicle, yet he did so anyway, resulting in him colliding with three parked vehicles. (Complaint, ¶¶ 9-11, 13.) The foregoing allegations of fact are sufficient to support Plaintiff's claim that Garcia's conduct was willful and wanton. (Complaint, ¶ 11.) Thus, the Court shall deny Defendants' Motion to Strike. Plaintiff to give notice. <u>Case Management Conference</u> The Case Management Conference is continued to August 27, 2026, at 9:00 a.m. in this department. Plaintiff to give notice.
9	Adjemian v. Gallo	Plaintiff Kevork Adjemian's motion for protective order is GRANTED. The court awards Plaintiff sanctions in the amount of \$<u>875</u>. (Code Civ. Proc. § 2033.080, subd. (d)). <u>Untimely Opposition</u> As a preliminary matter, Defendant Gallo's Opposition was due 6/11/26 pursuant to Code Civ. Proc. § 1005, subd. (b), but was not submitted until 6/16/26. The court disagrees with Defendant Gallo's assertion that this delay was "minimal", and, therefore, disregards the Opposition. <u>Authority</u> A protective order may be obtained if the relief is sought "promptly". (Code Civ. Proc. § 2033.080(a) [protective order for requests for admissions]). The burden is on the moving party to establish "good cause" for whatever order is sought. (<i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal.4th 245, 255 (interrogatories); <i>Stadish v. Super. Ct.</i> (1999) 71 Cal.App.4th 1130, 1145 (document requests).) "Good cause" requires specific facts demonstrating unwarranted annoyance, embarrassment, oppression, or undue burden and expense. (<i>Goodman v. Citizens Life & Cas. Ins. Co.</i> (1967) 253 Cal.App.2d 807, 819). <u>Merits</u> Plaintiff moves for an order excusing him from responding to Defendant's Gallo's third set of requests for admissions containing